

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Rodric Small,	:	Index No: _____
Plaintiff,	:	
-against-	:	
	:	<u>Complaint and Jury Demand</u>
The City of New York, New York City Police	:	
Department, Police Officer Paul Malillo,	:	
Officers John and Jane Does 1-10,	:	
in their individual and official capacities,	:	
Defendants.	:	
-----X	:	

Rodric Small, by his attorneys, The Aboushi Law Firm, respectfully, upon
information and belief, alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff is a resident of Kings County, City and State of New York.
2. At all times mentioned, Defendant City of New York, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. At all times mentioned, Defendant New York Police Department is an entity duly organized and existing by virtue of the laws of the State of New York.

4. At all relevant times, Defendant officers John and Jane Does are police officers in their individual and official capacities, at all times acting as agents for the NYPD and City of New York.
5. Police Officer Paul Mallilo is an employee of the City of New York and NYPD and at all relevant times participated in the below conduct and is stationed at the 71st Precinct.
6. Within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendants, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendants, of the nature, time, place, and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
7. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
8. All conditions and requirements precedent to the commencement of this action have been complied with.
9. The oral examination of the Plaintiff has been conducted in compliance with Section 50-H of the General Municipal law.

10. This actions falls within one or more exceptions set forth in the CPLR.
11. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiffs' non-economic loss.
12. On approximately December 11, 2014, at approximately 10:23 p.m., at Plaintiff's residence located on Winthrop Street, Brooklyn NY, Plaintiff was assaulted and unlawfully arrested by members of the NYPD, including Defendant officers.
13. The Defendant officers viciously punched the Plaintiff about the head and body, before and after he was taken into custody.
14. The Defendant officers then arrested the Plaintiff and in doing so struck Plaintiff and employed an illegal chokehold against the Plaintiff.
15. The illegal chokehold consisted of an officer wrapping his hands around Plaintiff's neck and squeezing his throat while other officers held Plaintiff's arms.
16. The Plaintiff was arrested in his home for purportedly trespassing in his own home. The Plaintiff informed the Defendant officers that he was in his residence.
17. Notwithstanding that Plaintiff was in his residence, the Defendant officers arrested the Plaintiff for trespass and or suspected burglary .
18. Plaintiff's parents were also home and repeatedly informed the officers that Plaintiff lived at the home.

19. The Defendant officers still falsely arrested the Plaintiff, as they had no probable cause or legal justification for the arrest,
20. The Defendant officers swore out false charges and complaints against the Plaintiff in order to cover up their unlawful actions, including false arrest, assault, and use of excessive force.
21. The assault was not privileged or otherwise authorized by law. As a result of the assault and/or excessive force used, Plaintiff suffered bodily injury requiring medical attention.
22. At no time did Defendants have legal cause or justification to grab, kick, seize, or touch the Plaintiff, and nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

23. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.
24. The above described actions did place Plaintiff in imminent fear of physical contact by approaching the Plaintiff aggressively, cursing at and threatening Plaintiff, and striking Plaintiff. All of the above actions placed Plaintiff in imminent fear of physical contact. At no time did Plaintiff consent to the unlawful actions of the Defendants.

25. Said actions intentionally and negligently caused Plaintiffs severe emotional distress, causing Plaintiffs to experience fear, anxiety, loss of sleep, appetite, and mental anguish.

AS AND FOR A THIRD CAUSE OF ACTION

26. Plaintiff repeats each and every allegation in this Complaint as though fully set forth at length herein.

27. Defendant police officers at all times relevant, were duly appointed, and acting agents and officers of the City of New York and the NYPD.

28. At all relevant times, Defendant officers were acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York and the NYPD.

29. Plaintiff is a citizen of the United States and resident of New York County in the State and City of New York, and brings this cause of action pursuant to 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as New York State Civil Rights Laws.

30. The above described conduct of the Defendants resulted in the Plaintiff being deprived of the following rights under the Constitutions of New York State and the United States:

- A. Freedom from assault;
- B. Freedom from excessive force;
- C. Freedom from battery;

- D. Freedom from unlawful search and seizure;
- E. Freedom from false arrest;
- F. Freedom from false imprisonment;
- G. Freedom from malicious prosecution;
- H. Freedom from emotional distress and imminent fear; and
- I. Defendant officers' failure to intervene and stop the unlawful use of force against Plaintiff despite the means and opportunity to do so.

31. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution as well as the New York State Constitution and common law.

32. The direct and proximate result of Defendants' acts is that Plaintiff has suffered, and continues to suffer, injuries of a physical and psychological nature.

AS AND FOR A FOURTH CAUSE OF ACTION

33. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

34. Defendants City of New York and NYPD has grossly failed to train and adequately supervise its Officers so as to prevent the assault and battery as described above.

35. This is one of many cases in which police officers fail to exercise caution, restraint, and control when dealing with citizens.
36. The City of New York and NYPD were negligent by failing to implement a policy with its officers who, absent the consent of Plaintiff would be prevented from perpetrating the above described conduct.
37. The City of New York and NYPD are negligent due to their failure to implement a policy with its officers, or actively enforce the law and train its officers and personnel about it.
38. The Defendants were negligent in how they handled the Plaintiff.
39. The foregoing acts, omissions and systematic failures are customs and policies of the City of New York and NYPD which caused Defendant officers to perpetrate and assault and battery to Plaintiff's person.
40. The Defendant City of New York is liable for the acts of their agents, the Defendant Police officers, and is thus liable for the same damages pursuant to Respondent Superior.

AS AND FOR A FIFTH CAUSE OF ACTION

41. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.
42. Defendants City of New York and NYPD were negligent in that prior to and at the time of the acts complained herein, due to the prior history of Defendant Officers, knew or should have known the bad disposition of said officers and Defendants

had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that the Defendant Officers were not suitable to be hired and employed by the City of New York and NYPD, and that due to their lack of training, Defendant Officers should have had adequate supervision so that they would not perpetrate the actions described above.

43. Thus the Defendant is guilty of Negligent Hiring and Supervision, Failure to Train, and Respondent Superior.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorney's fees and costs of bringing this case and punitive damages.

Dated: New York, NY
July 14, 2015

s/ Aymen A. Aboushi
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COUNTY OF KINGS

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The City of New York, New York City Police :
Department, Police Officer Paul Malillo, :
Officers John and Jane Does 1-10, :
in their individual and official capacities, :
Defendants. :
:
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Summons

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 14, 2015

s/ Aymen A. Aboushi
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